

Lead Graham, Michael vs. CA Farms, LLC

County: tulare

Division: Civil Law and Motion

Department: 1-Honorable David C. Mathias

Hearing date: 2026-09-03

Motion: Motion to Quash

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Re: Graham, Michael vs. CA Farms, LLC

Case No.: Lead: VCU3245716; consolidated with PCU325122

Date: September 3, 2026

Time: 8:30 A.M.

Dept. 1-Honorable David C. Mathias

Motion: Motion to Quash

Tentative Ruling: To deny the motion.

Here, the court takes up a "Motion of Prosperity Farms, LLC to Quash Records Subpoena to Bank of the Sierra." Receiver Focus Management Group (Focus), by the subject subpoena, seeks records from the bank where Prosperity Farms, LLC (Prosperity) maintains one or more accounts.

This court's order appointing Focus directs it "to take possession, custody, and control" of a receivership estate consisting of "all assets and property, tangible and intangible, real and personal, of any kind, of [Prosperity]," "whether in the current possession of [Prosperity] or any other person or entity," and "to maintain, conserve, and liquidate" the receivership estate in accordance with the court's order.

Focus's entitlement and duty to take possession of, and control, the estate under this court's order is "exclusive." "[T]o the exclusion of all others including Prosperity Farms' current equity owners, managers, and financial manager," Focus is given "all management powers, authorities, rights, and privileges (including the attorney-client privilege and work product protection) heretofore possessed by the officers, directors, managers, and/or members of Prosperity Farms ... in addition to all powers and authority of a receiver at equity or under applicable law, including, without limitation, the power in the Receiver's reasonable business judgment to resolve and take all corporate actions, to contract, to sue, to be sued, to commence any insolvency or bankruptcy proceeding, to liquidate, wind down, dissolve, or continue any business or business activities of the Receivership Estate, to make use of Receivership Estate assets, to investigate and prosecute claims of the Receivership Estate, and to settle, compromise, litigate, or contest any matter for and on behalf of the Receivership Estate."

According to Focus, notwithstanding its granted powers, it has encountered resistance in its efforts to get Prosperity's records from Bank of the Sierra. Focus asserts it "has not been able to obtain [these records] from the parties" and/or that

"[t]he Cooks" have refused to produce them. Focus has, in either event, because of this resistance, issued a business records subpoena to Bank of the Sierra for (1) "All DOCUMENTS and COMMUNICATIONS regarding PROSPERITY"; and (2) "All bank records for PROSPERITY ... from January 1, 2019 to present."

It's not clear why Focus needs to subpoena the records it seeks, its being expressly authorized to access such records under this court's appointment order, but evidently it is necessary. Perhaps it is because Bank of the Sierra will not provide the records, absent cooperation of individuals reflected in its records as having authority with respect to Prosperity's accounts. If Focus has encountered difficulty securing the cooperation of those formerly authorized with respect to Prosperity's account(s), however, that would be a troubling development. This court's order specifically "directed" "[a]ll persons and entities having control, custody or possession of any [of the above identified] items ... to turn them over to the Receiver within five business days of the entry of this Order, including information necessary for [the] Receiver to exercise full and exclusive control over all bank accounts in the name of or belonging to the Receivership Estate." Specifically, the order provides: "The managers and members of Prosperity Farms, including the Grahams, shall fully cooperate with all actions taken by the Receiver in connection with this Order. Prosperity Farms and its officers, directors, members, managers, employees, and advisors shall immediately provide the Receiver with full access to all financial information, legal documents, employees, and other records regarding the Receivership Estate."

Clearly, though, Focus has encountered difficulty, and all indications are that the difficulty arises from a lack of cooperation on the part of one or more people this court has ordered to cooperate with Focus. The instant motion is a clear incidence of such resistance: The objective is to prevent or forestall production of Prosperity's bank records to Focus, notwithstanding its court-ordered entitlement to them. It's a bit of a mystery who is behind it, though, since it's obviously not Focus. It is only clear attorney Justin Campagne, who represents he is "an attorney with the law firm of Campagne & Campagne, a Prof. Corp., ... counsel for Defendant PROSPERITY FARMS, LLC," assisted with the motion. Campagne, obviously, does not represent Focus.

Needless to say, the court agrees with Focus that, given its appointment as receiver, whomever purports to direct Prosperity here—given that it's not Focus—has no "independent authority" to bring this motion, and Mr. Campagne—not being counsel hired by Focus—"has no authority ... to appear on behalf of Prosperity Farms."

For this principal reason, the motion to quash is denied.

Additionally, though, the grounds presented to quash the subpoena are meritless; based entirely on perfunctorily stated arguments that the subpoena "is ... overbroad as to scope and time," is "not reasonably calculated to lead to admissible evidence," and violative of constitutional privacy interests of "Prosperity Farms and its members, some of whom are individuals, namely, Michael and Cynthia Graham [notably, the Grahams do not join in the motion or otherwise weigh in]."

The powers and duties of the receiver with respect to Prosperity Farms's assets, including its bank accounts, self-evidently undermine the contention that the subpoena is overbroad or that it does not seek admissible evidence, or documents reasonably calculated to lead to admissible evidence.

And, assuming, without here deciding, that Prosperity Farms has some cognizable constitutional privacy interest in the records sought (see Hecht, Solberg, Robinson, Goldberg & Bagley LLP v. Superior Court (2006) 137 Cal.App.4th 579, 595 [40 Cal.Rptr.3d 446]), no effort is made, beyond stating that privacy interests are "implicate[d]," to explain why that interest should trump Focus's interest in receiving records to which it is entitled under standing orders of this court.

And so, even if this motion was initiated by those authorized to do so, it would be denied.

Request for Campagne & Campagne to turn over file; sanctions

Focus additionally requests the Campagne & Campagne firm to turn over its "complete file" to Focus, and, additionally, that the court "find that Campagne & Campagne acted without substantial justification in connection with the instant Motion." Regarding the latter request, Focus states, "[i]f the Court makes this finding ... , the Receiver intends to file a motion for the fees and costs incurred in connection with opposing the Motion."

The court declines to order turnover of the file, given the procedural posture of the request (in an opposition brief); the court does find the motion was brought in bad faith.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.